

HOUSE No. 3293

The Commonwealth of Massachusetts

PRESENTED BY:

David Biele and Daniel J. Hunt

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the employment of persons with disabilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Biele</i>	<i>4th Suffolk</i>	<i>1/17/2025</i>
<i>Daniel J. Hunt</i>	<i>13th Suffolk</i>	<i>1/17/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>1/28/2025</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>2/11/2025</i>
<i>Edward R. Philips</i>	<i>8th Norfolk</i>	<i>2/11/2025</i>
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>2/11/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>2/11/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/27/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>5/19/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>8/19/2025</i>

HOUSE No. 3293

By Representatives Biele of Boston and Hunt of Boston, a petition (accompanied by bill, House, No. 3293) of David Biele, Daniel J. Hunt and others relative to the employment of persons with disabilities. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the employment of persons with disabilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 7 of the Massachusetts General Laws is hereby amended by placing after Section
2 38P the following: -

3 SECTION 38Q. (a) Any contract issued for services in the Commonwealth of
4 Massachusetts or any political subdivision there-in that receives appropriated funds from the
5 legislature of the Commonwealth of Massachusetts shall employ up to 2% of individuals with
6 disabilities hired within such contract. Companies/bidders awarded such contracts must employ
7 a minimum of 75 full-time equivalents. Notwithstanding any general or special law to the
8 contract, the Supplier Diversity Office in consultation with the Massachusetts Office on
9 Disability, the Massachusetts Commission for the Blind and the Massachusetts Rehabilitation
10 Commission shall implement and regulate said law. In addition, said agencies will arrange for
11 employment support services for all individuals with disabilities hired through a vast array of
12 non- profit employment providers located throughout the Commonwealth.

(b) Such services shall include but not be limited to janitorial and custodial services, landscaping services, mailroom services, food services, fleet management, manufacturing, trash removal, document destruction, electronic scanning of documents, and facility management services including but not limited to HVAC Services, Painting, Emergency Repair Series, and Snow Removal.

(c) For the purpose of this act, an individual with a disability will be defined as: someone (i) who has a severe physical or mental impairment which seriously limits one or more functional capacities (such as mobility, communication, self-care, self-direction, interpersonal skills, work tolerance, or work skills) in terms of an employment outcome; (ii) someone whose vocational rehabilitation can be expected to require multiple vocational rehabilitation services over an extended period of time; (iii) someone who has one or more physical or mental disabilities resulting from amputation, arthritis, autism, blindness, burn injury, cancer, cerebral palsy, cystic fibrosis, deafness, head injury, heart disease, hemiplegia, hemophilia, respiratory or pulmonary dysfunction, mental retardation, mental illness, multiple sclerosis, muscular dystrophy, musculo-skeletal disorders, neurological disorders (including stroke and epilepsy), paraplegia, quadriplegia, and other spinal cord conditions, sickle cell anemia, specific learning disability, end-stage renal disease, or another disability or combination of disabilities determined on the basis of an assessment for determining eligibility and vocational rehabilitation to cause comparable substantial functional limitation.

(d) The percentage requirements shall be met within one year of award of such contract, and steps shall be taken to minimize the displacement of any workers already providing the services covered by such contract.